

25SMCV01345 25SMCV01345

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-07-15

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Case Number: 25SMCV01345 Hearing Date: July 15, 2026 Dept: 205

BACKGROUND

Plaintiffs

Derik Johnson and Chavaune Johnson filed suit against Defendant Mountains Recreation & Conservation Authority filed suit against Defendant Mountains Recreation & Conservation Authority, alleging causes of action for breach of fiduciary duties, breach of contract, unethical and illegal practices, anti-trust laws, among other things.

In Plaintiffs'

case summary, they state that they entered into a written purchase agreement for 100 acres of property in Calabasas, and Defendant intentionally interfered with Plaintiffs' contractual rights by negotiating with the sellers are offering a higher purchase price. As a result, the sellers breached the agreement and conveyed the property to Defendant.

Plaintiffs filed a

proof of service showing that Defendant was personally served on March 17, 2025. Plaintiffs successfully requested the entry of Defendant's default, which was entered by the Clerk's Office on October 17, 2025. Plaintiffs requested a default judgment on October 17, 2025. Plaintiffs served Defendant by mail with the Request for Default Judgment. Defendant has not appeared.

RELIEF

REQUESTED

Default

judgment against Defendant for a total of \$100 million, which is comprised of damages.

ANALYSIS

Code of Civil Procedure section 585

sets forth the two options for obtaining a default judgment. First, where the plaintiff's complaint seeks compensatory damages only, in a sum certain which is readily ascertainable from the allegations of the complaint or statement of damages, the clerk may enter the default judgment for that amount. However, if the relief requested in the complaint is more complicated, consisting of either nonmonetary relief, or monetary relief in amounts which require either an accounting, additional evidence, or the exercise of judgment to ascertain, the plaintiff must request entry of judgment by the court. In such cases, the plaintiff must affirmatively establish his entitlement to the specific judgment requested. (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 287.) Section 585 also allows for interest, costs and attorney fees, where otherwise allowed by law. (Code of Civ. Proc. 585(a).)

Multiple specific documents are required, such as: (1) form CIV 100, (2) a brief summary of the case; (3) declarations or other admissible evidence in support of the judgment requested; (4) interest computations as necessary; (5) a memorandum of costs and disbursements; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under CCP § 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (CRC Rule 3.1800.)

Here, Plaintiffs have not complied with all requirements for a default judgment.

(1)

"It is well established a default judgment cannot properly be based on a complaint which fails to state a cause of action against the party defaulted" because a default admits only the allegations alleged in the complaint. (Falahati v. Kondo (2005) 127 Cal.App.4th 823, 829.) Plaintiffs first amended complaint fails to state any causes of action against Defendant. There are no facts whatsoever. It is unclear what Defendant's role in this case is when reading

the operative complaint. Further, multiple causes of action are alleged but it is unclear which of the causes of action are directed to defaulting Defendant (the Court notes other defendants were dismissed from this case). As an example, there is a cause of action for breach of contract, but based on Plaintiffs' case summary, Plaintiffs did not enter into a contract with Defendant. The operative complaint also alleges non-existent claims such as "back dooring" and "contemporaneous recognition."

(2) Does 1-10 have not been dismissed.

(3) Plaintiffs' declaration does not substantiate \$100 million in damages.

(4) Item 4 of the Form CIV-100 should not state costs are sought in the amount of \$100 million when the box has been checked indicating costs are waived.

(5) The Proposed Judgment is not completely filled out.

(6) None of the attachments have been authenticated.

CONCLUSION AND ORDER

For the foregoing reasons, the Court DENIES Plaintiffs' request for default judgment.